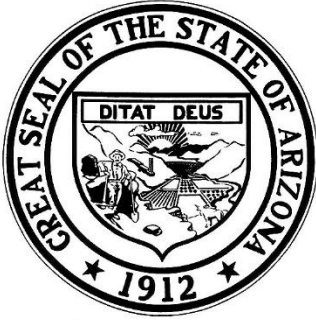


HOUSE FLOOR AMENDMENT EXPLANATION



Bill Number: **HB2671**

Hernandez C Floor Amendment

The C. Hernandez floor amendment dated 03/06/2026 at 4:37 PM, does the following:

1. Removes language allowing prosecutors to charge juveniles 14 or older directly as adults based on certain felony offenses.
2. Requires a juvenile court hearing before a juvenile can be prosecuted as an adult, where the court must find probable cause and determine that adult prosecution is necessary for public safety and the interests of justice.
3. Requires the state to prove by clear and convincing evidence that adult prosecution is necessary.
4. Replaces the list of qualifying felony offenses with a set of factors the court must consider, including use of a deadly weapon, the juvenile's prior delinquency history, age and mental condition, rehabilitation history, prior commitment to juvenile corrections, victim views, gang involvement, level of participation, and likelihood of rehabilitation.
5. Specifies that a juvenile committed to the Department of Juvenile Corrections who has two prior separate felony adjudications for conduct that would qualify as historical prior felony convictions if tried as an adult is considered a chronic felony offender.

Amendment explanation prepared by Israel Kiyogera

Phone Number 6-5846

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3/6/2026

HERNANDEZ C SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2671

I move the following SUBSTITUTE amendment to the GOVERNMENT Committee Amendment to HOUSE BILL 2671 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 8-201, Arizona Revised Statutes, is amended to
3 read:

4 8-201. Definitions

5 In this title, unless the context otherwise requires:

6 1. "Abandoned" means the failure of the parent to provide
7 reasonable support and to maintain regular contact with the child,
8 including providing normal supervision. Abandoned includes a judicial
9 finding that a parent has made only minimal efforts to support and
10 communicate with the child. Failure to maintain a normal parental
11 relationship with the child without just cause for a period of six months
12 constitutes prima facie evidence of abandonment.

13 2. "Abuse":

14 (a) Means the infliction or allowing of physical injury, impairment
15 of bodily function or disfigurement or the infliction of or allowing
16 another person to cause serious emotional damage as evidenced by severe
17 anxiety, depression, withdrawal or untoward aggressive behavior and which
18 emotional damage is diagnosed by a medical doctor or psychologist and is
19 caused by the acts or omissions of an individual who has the care, custody
20 and control of a child, including an employee of a child welfare agency
21 where a child is placed that is licensed by and contracted with the
22 department.

23 (b) Includes:

24 (i) Inflicting or allowing sexual abuse pursuant to section
25 13-1404, sexual conduct with a minor pursuant to section 13-1405, sexual
26 assault pursuant to section 13-1406, molestation of a child pursuant to
27 section 13-1410, commercial sexual exploitation of a minor pursuant to

1 section 13-3552, sexual exploitation of a minor pursuant to section
2 13-3553, incest pursuant to section 13-3608 or child sex trafficking
3 pursuant to section 13-3212.

4 (ii) Physical injury that results from allowing a child to enter or
5 remain in any structure or vehicle in which volatile, toxic or flammable
6 chemicals are found or equipment is possessed by any person for the
7 purpose of manufacturing a dangerous drug as defined in section 13-3401.

8 (iii) Unreasonable confinement of a child.

9 3. "Adult" means a person who is eighteen years of age or older.

10 4. "Adult court" means the appropriate justice court, municipal
11 court or criminal division of the superior court that has jurisdiction to
12 hear proceedings concerning offenses committed by juveniles as provided in
13 ~~[sections 8-327 and]~~ [SECTION] 13-501.

14 5. "Award" or "commit" means to assign legal custody.

15 6. "Child", "youth" or "juvenile" means an individual who is under
16 eighteen years of age.

17 7. "Complaint" means a written statement of the essential facts
18 constituting a public offense that is any of the following:

19 (a) Made on an oath before a judge or commissioner of the superior
20 court or an authorized juvenile hearing officer.

21 (b) Made pursuant to section 13-3903.

22 (c) Accompanied by an affidavit of a law enforcement officer or
23 employee that swears on information and belief to the accuracy of the
24 complaint pursuant to section 13-4261.

25 8. "Criminal conduct allegation" means an allegation of conduct by
26 a parent, guardian or custodian of a child or an adult member of the
27 victim's household that, if true, would constitute any of the following:

28 (a) A violation of section 13-3623 involving child abuse.

29 (b) A felony offense that constitutes domestic violence as defined
30 in section 13-3601.

31 (c) A violation of section 13-1404 or 13-1406 involving a minor.

32 (d) A violation of section 13-1405, 13-1410 or 13-1417.

33 (e) Any other act of abuse that is classified as a felony.

34 (f) An offense that constitutes domestic violence as defined in
35 section 13-3601 and that involves a minor who is a victim of or was in
36 imminent danger during the domestic violence.

37 9. "Custodian" means a person, other than a parent or legal
38 guardian, who stands in loco parentis to the child or a person to whom
39 legal custody of the child has been given by order of the juvenile court.

40 10. "DCS report" means a communication received by the centralized
41 intake hotline that alleges child abuse or neglect and that meets the
42 criteria for a report as prescribed in section 8-455.

43 11. "Delinquency hearing" means a proceeding in the juvenile court
44 to determine whether a juvenile has committed a specific delinquent act as
45 set forth in a petition.

46 12. "Delinquent act" means an act by a juvenile that if committed
47 by an adult would be a criminal offense or a petty offense, a violation of

1 any law of this state, or of another state if the act occurred in that
2 state, or a law of the United States, or a violation of any law that can
3 only be violated by a minor and that has been designated as a delinquent
4 offense, or any ordinance of a city, county or political subdivision of
5 this state defining crime. Delinquent act does not include an offense
6 ~~[under section 13-501, subsection A or B if the offense]~~ [THAT] is filed
7 in adult court ~~[PURSUANT TO SECTION 13-501, SUBSECTION A OR B]~~. Any
8 juvenile who is prosecuted as an adult or who is remanded for prosecution
9 as an adult shall not be adjudicated as a delinquent juvenile for the same
10 offense.

11 13. "Delinquent juvenile" means a child who is adjudicated to have
12 committed a delinquent act.

13 14. "Department" means the department of child safety.

14 15. "Dependent child":

15 (a) Means a child who is adjudicated to be:

16 (i) In need of proper and effective parental care and control and
17 who has no parent or guardian, or one who has no parent or guardian
18 willing to exercise or capable of exercising such care and control.

19 (ii) Destitute or who is not provided with the necessities of life,
20 including adequate food, clothing, shelter or medical care.

21 (iii) A child whose home is unfit by reason of abuse, neglect,
22 cruelty or depravity by a parent, a guardian or any other person having
23 custody or care of the child.

24 (iv) Under eight years of age and who is found to have committed an
25 act that would result in adjudication as a delinquent juvenile or
26 incorrigible child if committed by an older juvenile or child.

27 (v) Incompetent or not restorable to competency and who is alleged
28 to have committed a serious offense as defined in section 13-706.

29 (b) Does not include a child who in good faith is being furnished
30 Christian Science treatment by a duly accredited practitioner if none of
31 the circumstances described in subdivision (a) of this paragraph exists.

32 16. "Detention" means the temporary confinement of a juvenile who
33 requires secure care in a physically restricting facility that is
34 completely surrounded by a locked and physically secure barrier with
35 restricted ingress and egress for the protection of the juvenile or the
36 community pending court disposition or as a condition of probation.

37 17. "Director" means the director of the department.

38 18. "Health professional" has the same meaning prescribed in
39 section 32-3201.

40 19. "Incorrigible child" means a child who:

41 (a) Is adjudicated as a child who refuses to obey the reasonable
42 and proper orders or directions of a parent, guardian or custodian and who
43 is beyond the control of that person.

44 (b) Is habitually truant from school as defined in section 15-803,
45 subsection C.

46 (c) Is a runaway from the child's home or parent, guardian or
47 custodian.

1 (d) Habitually behaves in such a manner as to injure or endanger
2 the morals or health of self or others.

3 (e) Commits any act constituting an offense that can only be
4 committed by a minor and that is not designated as a delinquent act.

5 (f) Fails to obey any lawful order of a court of competent
6 jurisdiction given in a noncriminal action.

7 20. "Independent living program" includes a residential program
8 with supervision of less than twenty-four hours a day.

9 21. "Juvenile court" means the juvenile division of the superior
10 court when exercising its jurisdiction over children in any proceeding
11 relating to delinquency, dependency or incorrigibility.

12 22. "Law enforcement officer" means a peace officer, sheriff,
13 deputy sheriff, municipal police officer or constable.

14 23. "Medical director of a mental health agency":

15 (a) Means a psychiatrist, or licensed physician experienced in
16 psychiatric matters, who is designated in writing by the governing body of
17 the agency as the person in charge of the medical services of the agency,
18 or a psychiatrist designated by the governing body to act for the
19 director.

20 (b) Includes the superintendent of the state hospital.

21 24. "Mental health agency" means any private or public facility
22 that is licensed by this state as a mental health treatment agency, a
23 psychiatric hospital, a psychiatric unit of a general hospital or a
24 residential treatment center for emotionally disturbed children and that
25 uses secure settings or mechanical restraints.

26 25. "Neglect" or "neglected" means:

27 (a) The inability or unwillingness of a parent, guardian or
28 custodian of a child to provide that child with supervision, food,
29 clothing, shelter or medical care if that inability or unwillingness
30 causes substantial risk of harm to the child's health or welfare, except
31 if the inability of a parent, guardian or custodian to provide services to
32 meet the needs of a child with a disability or chronic illness is solely
33 the result of the unavailability of reasonable services.

34 (b) Allowing a child to enter or remain in any structure or vehicle
35 in which volatile, toxic or flammable chemicals are found or equipment is
36 possessed by any person with the intent and for the purpose of
37 manufacturing a dangerous drug as defined in section 13-3401.

38 (c) A determination by a health professional that a newborn infant
39 was exposed prenatally to a drug or substance listed in section 13-3401
40 and that this exposure was not the result of a medical treatment
41 administered to the mother or the newborn infant by a health professional.
42 This subdivision does not expand a health professional's duty to report
43 neglect based on prenatal exposure to a drug or substance listed in
44 section 13-3401 beyond the requirements prescribed pursuant to section
45 13-3620, subsection E. The determination by the health professional shall
46 be based on one or more of the following:

1 (i) Clinical indicators in the prenatal period including maternal
2 and newborn presentation.

3 (ii) History of substance use or abuse.

4 (iii) Medical history.

5 (iv) Results of a toxicology or other laboratory test on the mother
6 or the newborn infant.

7 (d) Diagnosis by a health professional of an infant under one year
8 of age with clinical findings consistent with fetal alcohol syndrome or
9 fetal alcohol effects.

10 (e) Deliberate exposure of a child by a parent, guardian or
11 custodian to sexual conduct as defined in section 13-3551 or to sexual
12 contact, oral sexual contact or sexual intercourse as defined in section
13 13-1401, bestiality as prescribed in section 13-1411 or explicit sexual
14 materials as defined in section 13-3507.

15 (f) Any of the following acts committed by the child's parent,
16 guardian or custodian with reckless disregard as to whether the child is
17 physically present:

18 (i) Sexual contact as defined in section 13-1401.

19 (ii) Oral sexual contact as defined in section 13-1401.

20 (iii) Sexual intercourse as defined in section 13-1401.

21 (iv) Bestiality as prescribed in section 13-1411.

22 26. "Newborn infant" means a child who is under thirty days of age.

23 27. "Petition" means a written statement of the essential facts
24 that allege delinquency, incorrigibility or dependency.

25 28. "Prevention" means the creation of conditions, opportunities
26 and experiences that encourage and develop healthy, self-sufficient
27 children and that occur before the onset of problems.

28 29. "Protective supervision" means supervision that is ordered by
29 the juvenile court of children who are found to be dependent or
30 incorrigible.

31 30. "Qualified young adult" means a former dependent child who is
32 at least eighteen years of age and not over twenty-one years of age, who
33 meets the criteria for an extended foster care program pursuant to section
34 8-521.02 and who signs a voluntary agreement to participate in the
35 program.

36 31. "Referral" means a report that is submitted to the juvenile
37 court and that alleges that a child is dependent or incorrigible or that a
38 juvenile has committed a delinquent or criminal act.

39 32. "Secure care" means confinement in a facility that is
40 completely surrounded by a locked and physically secure barrier with
41 restricted ingress and egress.

42 33. "Serious emotional injury" means an injury that is diagnosed by
43 a medical doctor or a psychologist and that does any one or a combination
44 of the following:

45 (a) Seriously impairs mental faculties.

1 (b) Causes serious anxiety, depression, withdrawal or social
2 dysfunction behavior to the extent that the child suffers dysfunction that
3 requires treatment.

4 (c) Is the result of sexual abuse pursuant to section 13-1404,
5 sexual conduct with a minor pursuant to section 13-1405, sexual assault
6 pursuant to section 13-1406, molestation of a child pursuant to section
7 13-1410, child sex trafficking pursuant to section 13-3212, commercial
8 sexual exploitation of a minor pursuant to section 13-3552, sexual
9 exploitation of a minor pursuant to section 13-3553 or incest pursuant to
10 section 13-3608.

11 34. "Serious physical injury" means an injury that is diagnosed by
12 a medical doctor and that does any one or a combination of the following:

13 (a) Creates a reasonable risk of death.

14 (b) Causes serious or permanent disfigurement.

15 (c) Causes significant physical pain.

16 (d) Causes serious impairment of health.

17 (e) Causes the loss or protracted impairment of an organ or limb.

18 (f) Is the result of sexual abuse pursuant to section 13-1404,
19 sexual conduct with a minor pursuant to section 13-1405, sexual assault
20 pursuant to section 13-1406, molestation of a child pursuant to section
21 13-1410, child sex trafficking pursuant to section 13-3212, commercial
22 sexual exploitation of a minor pursuant to section 13-3552, sexual
23 exploitation of a minor pursuant to section 13-3553 or incest pursuant to
24 section 13-3608.

25 35. "Shelter care" means the temporary care of a child in any
26 public or private facility or home that is licensed by this state and that
27 offers a physically nonsecure environment that is characterized by the
28 absence of physically restricting construction or hardware and that
29 provides the child access to the surrounding community.

30 36. "Standardized hotline assessment tool" means any written tool
31 used to make a determination that the allegation of abuse or neglect that
32 is the subject of a report received pursuant to section 8-455 involves
33 conduct that warrants investigation by the department pursuant to section
34 8-456 or 8-471.

35 37. "Young adult administrative review" means an administrative
36 review of a voluntary extended foster care case plan with the qualified
37 young adult, the department's case specialist or designee, an independent
38 party who is not responsible for the case management of or the delivery of
39 services to the qualified young adult and any other individual the young
40 adult invites.>>

41 <<Sec. 2. Section 8-202, Arizona Revised Statutes, is amended to
42 read:

43 8-202. Jurisdiction of juvenile court

44 A. The juvenile court has original jurisdiction over all
45 delinquency proceedings brought under the authority of this title.

1 B. The juvenile court has exclusive original jurisdiction over all
2 proceedings brought under the authority of this title except for
3 delinquency proceedings.

4 C. The juvenile court may consolidate any matter, except that the
5 juvenile court shall not consolidate any of the following:

6 1. A criminal proceeding that is filed in another division of
7 superior court and that involves a child who is subject to the
8 jurisdiction of the juvenile court.

9 2. A delinquency proceeding with any other proceeding that does not
10 involve delinquency, unless the juvenile delinquency adjudication
11 proceeding is not heard at the same time or in the same hearing as a
12 nondelinquency proceeding.

13 D. The juvenile court has jurisdiction of proceedings to:

14 1. Obtain judicial consent to the marriage, employment or
15 enlistment in the armed services of a child, if consent is required by
16 law.

17 2. In an action in which parental rights are terminated pursuant to
18 chapter 4, article 5 or 11 of this title, change the name of a minor child
19 who is the subject of the action. If the minor child who is the subject
20 of the action is twelve years of age or older, the court shall consider
21 the wishes of the child with respect to the name change.

22 E. The juvenile court has jurisdiction over civil traffic
23 violations, civil marijuana violations and offenses listed in section
24 8-323, subsection B that are committed within the county by persons who
25 are under eighteen years of age unless the presiding judge of the county
26 declines jurisdiction of these cases. The presiding judge of the county
27 may decline jurisdiction of civil traffic violations and civil marijuana
28 violations committed within the county by juveniles if the presiding judge
29 finds that the declination would promote the more efficient use of limited
30 judicial and law enforcement resources located within the county. If the
31 presiding judge declines jurisdiction, juvenile civil traffic violations
32 and civil marijuana violations shall be processed, heard and disposed of
33 in the same manner and with the same penalties as adult civil traffic
34 violations.

35 F. The orders of the juvenile court under the authority of this
36 chapter or chapter 3 or 4 of this title take precedence over any order of
37 any other court of this state except for the following:

38 1. An order entered in the criminal court concerning an ongoing
39 case that governs a criminal defendant's ability to contact the victim,
40 the family of the victim or other minor children if the criminal court
41 makes a finding that contact with other minor children would pose a risk
42 of harm to those children.

43 2. ~~[An order]~~ **[ORDERS]** by the court of appeals and the supreme
44 court to the extent they are inconsistent with orders of other courts.

45 G. Except as provided in subsection H of this section, jurisdiction
46 of a child that is obtained by the juvenile court in a proceeding under
47 this chapter or chapter 3 or 4 of this title shall be retained by it, for

1 the purposes of implementing the orders made and filed in that proceeding,
2 until the child becomes eighteen years of age, unless terminated by order
3 of the court before the child's eighteenth birthday.

4 H. At any time before an adjudication hearing or a proceeding in
5 which a juvenile is admitting to an allegation in a petition that alleges
6 the juvenile is delinquent, the state may file a notice of intent to
7 retain jurisdiction over a juvenile who is seventeen years of age. If the
8 state files a notice of intent to retain jurisdiction, the juvenile
9 court's jurisdiction over a juvenile is retained on the filing of the
10 notice and the court shall retain jurisdiction over the juvenile until the
11 juvenile reaches nineteen years of age, unless before the juvenile's
12 nineteenth birthday either:

13 1. Jurisdiction is terminated by order of the court.

14 2. The juvenile is discharged from the jurisdiction of the
15 department of juvenile corrections pursuant to section 41-2820.

16 I. Persons who are under eighteen years of age shall be prosecuted
17 in the same manner as adults if either:

18 1. The juvenile court transfers jurisdiction pursuant to section
19 ~~8-327~~ [13-501].

20 2. The juvenile is charged as an adult with an offense listed in
21 section 13-501.

22 J. The juvenile court shall retain jurisdiction after a juvenile's
23 eighteenth birthday for the purpose of:

24 1. Designating an undesignated felony offense as a misdemeanor or
25 felony, including after an adjudication is set aside pursuant to section
26 8-348.

27 2. Modifying an outstanding monetary obligation imposed by the
28 court except for victim restitution.

29 3. Implementing section 36-2862.

30 K. The juvenile court has jurisdiction to make the initial
31 determination prescribed in section 8-829 whether the voluntary
32 participation of a qualified young adult in an extended foster care
33 program pursuant to section 8-521.02 is in the young adult's best
34 interests.>>

35 <<Sec. 3. Section 8-305, Arizona Revised Statutes, is amended to
36 read:

37 8-305. Detention center; jail; separate custody; definition

38 A. The county board of supervisors or the county jail district, if
39 authorized pursuant to title 48, chapter 25, shall maintain a detention
40 center that is separate and apart from a jail or lockup in which adults
41 are confined and where juveniles who are alleged to be delinquent or
42 children who are incorrigible and within the provisions of this article
43 shall be detained when necessary before or after a hearing or as a
44 condition of probation. A juvenile who is charged with an offense that is
45 listed in section 13-501 may be detained in a juvenile detention center if
46 the court orders the detention. The board may enter agreements with
47 public or private entities to acquire land for, build, purchase,

1 lease-purchase, lease or expand a detention center required by this
2 section.

3 B. The board of supervisors or the county jail district, if
4 authorized pursuant to title 48, chapter 25, may provide for the detention
5 of juveniles who are accused or convicted of a criminal offense in a jail
6 or lockup in which adults are confined. A juvenile who is confined in a
7 jail or lockup in which adults are confined shall be kept in a physically
8 separate section from any adult who is charged with or convicted of a
9 criminal offense, and no sight or sound contact between the juvenile and
10 any charged or convicted adult is allowed, except to the extent authorized
11 under federal laws or regulations.

12 C. A juvenile, pending a juvenile hearing, shall not be confined
13 with adults charged with or convicted of a crime, except that:

14 1. A juvenile who is accused of a criminal offense or who is
15 alleged to be delinquent may be securely detained in such location for up
16 to six hours until transportation to a juvenile detention center can be
17 arranged if the juvenile is kept in a physically separate section from any
18 adult who is charged with or convicted of a crime and no sight or sound
19 contact between the juvenile and any charged or convicted adult is
20 allowed, except to the extent authorized under federal laws or
21 regulations.

22 2. A juvenile who is transferred as provided in section
23 ~~[8-327]~~ [13-501] to the criminal division of the superior court may be
24 securely detained if the juvenile is kept in a physically separate section
25 from any adult charged with or convicted of a crime, and no sight or sound
26 contact with any charged or convicted adult is allowed, except to the
27 extent authorized under federal laws or regulations.

28 3. A juvenile who is arrested for an offense listed in section
29 13-501 may be detained in a juvenile detention center until formally
30 charged as an adult if the court orders the detention. After a juvenile
31 has been formally charged as an adult the juvenile may be either of the
32 following:

33 (a) Detained in a juvenile detention center.

34 (b) Securely detained in an adult facility if the juvenile is
35 detained separately from any adult charged with or convicted of a crime,
36 except to the extent authorized under federal laws or regulations.

37 D. In determining whether to order that a juvenile who is charged
38 with an offense that is listed in section 13-501 be detained in a juvenile
39 detention center or an adult facility pursuant to subsection A or
40 subsection C, paragraph 3, subdivision (a) of this section, the court
41 shall consider all of the following:

42 1. The best interests of both the juvenile charged as an adult and
43 the other juveniles detained in the juvenile detention center.

44 2. The juvenile's age.

45 3. The juvenile's physical and mental maturity.

46 4. The juvenile's present mental state, including whether the
47 juvenile presents an imminent risk of harm to the juvenile.

1 5. The nature and circumstances of the alleged offense.

2 6. The juvenile's history of prior delinquent acts.

3 7. The relative ability of the available adult and juvenile
4 detention facilities to meet the specific needs of the juvenile and to
5 protect the safety of the public as well as other detained juveniles.

6 8. The existing programs and facilities for juveniles at both the
7 juvenile detention center and the adult facility.

8 9. Any other factor relevant to the determination of where to
9 detain the juvenile.

10 E. The director of juvenile court services in the county in which
11 the juvenile is detained may file a motion in the juvenile's criminal case
12 that requests a juvenile who is charged with an offense listed in section
13 13-501 be transferred to an adult facility based on the juvenile's conduct
14 while in detention. On the director's request for the juvenile's
15 transfer, the court shall hold a hearing to consider the transfer. At the
16 hearing, the court shall consider all of the factors listed in subsection
17 D of this section.

18 F. A child who is alleged to be delinquent or who is alleged to be
19 incorrigible shall not be securely detained in a jail or lockup in which
20 adults charged with or convicted of a crime are detained. A child may be
21 nonsecurely detained if necessary to obtain the child's name, age,
22 residence or other identifying information for up to six hours until
23 arrangements for transportation to any shelter care facility, home or
24 other appropriate place can be made. A child who is nonsecurely detained
25 shall be detained separately from any adult charged with or convicted of a
26 crime, and no sight or sound contact with any charged or convicted adult
27 is [permitted] [ALLOWED], except to the extent authorized under federal
28 laws or regulations.

29 G. Any detained juvenile or child who, by the juvenile's or child's
30 conduct, endangers or evidences that the juvenile or child may endanger
31 the safety of other detained children shall not be allowed to intermingle
32 with any other juvenile or child in the detention center.

33 H. Pursuant to section 8-322, the county board of supervisors, the
34 county jail district board of directors or the administrative office of
35 the courts on behalf of the juvenile court may enter into an agreement
36 with public or private entities to provide the detention centers required
37 by subsection A of this section.

38 I. For the purposes of this section, "juvenile" includes a person
39 who is under the jurisdiction of the juvenile court pursuant to section
40 8-202, subsection H.>>

41 <<Sec. 4. Repeal

42 [Section 8-327, Arizona Revised Statutes, is repealed.]>>

43 <<Sec. 5. Section 8-341, Arizona Revised Statutes, is amended to
44 read:

45 8-341. Disposition and commitment; definitions

46 A. After receiving and considering the evidence on the proper
47 disposition of the case, the court may enter judgment as follows:

1 1. It may award a delinquent juvenile:

2 (a) To the care of the juvenile's parents, subject to the
3 supervision of a probation department.

4 (b) To a probation department, subject to any conditions the court
5 may impose, including a period of incarceration in a juvenile detention
6 center of not more than one year.

7 (c) To a reputable citizen of good moral character, subject to the
8 supervision of a probation department.

9 (d) To a private agency or institution, subject to the supervision
10 of a probation officer.

11 (e) To the department of juvenile corrections.

12 (f) To maternal or paternal relatives, subject to the supervision
13 of a probation department.

14 (g) To an appropriate official of a foreign country of which the
15 juvenile is a foreign national who is unaccompanied by a parent or
16 guardian in this state to remain on unsupervised probation for at least
17 one year on the condition that the juvenile cooperate with that official.

18 2. It may award an incorrigible child:

19 (a) To the care of the child's parents, subject to the supervision
20 of a probation department.

21 (b) To the protective supervision of a probation department,
22 subject to any conditions the court may impose.

23 (c) To a reputable citizen of good moral character, subject to the
24 supervision of a probation department.

25 (d) To a public or private agency, subject to the supervision of a
26 probation department.

27 (e) To maternal or paternal relatives, subject to the supervision
28 of a probation department.

29 B. If a juvenile is placed on probation pursuant to this section,
30 the period of probation may continue until the juvenile's eighteenth
31 birthday or until the juvenile's nineteenth birthday if jurisdiction is
32 retained pursuant to section 8-202, subsection H, except that the term of
33 probation shall not exceed one year if all of the following apply:

34 1. The juvenile is not charged with a subsequent offense.

35 2. The juvenile has not been found in violation of a condition of
36 probation.

37 3. The court has not made a determination that it is in the best
38 interests of the juvenile or the public to require continued supervision.
39 The court may not use the juvenile's failure to pay fees, costs or fines
40 as a reason to continue supervision. The court shall state by minute
41 entry or written order its reasons for finding that continued supervision
42 is required.

43 4. The offense for which the juvenile is placed on probation does
44 not involve a dangerous offense as defined in section 13-105.

45 5. The offense for which the juvenile is placed on probation does
46 not involve a violation of title 13, chapter 14 or 35.1.

47 6. Restitution ordered pursuant to section 8-344 has been made.

1 C. If a juvenile is adjudicated as a first time felony juvenile
2 offender, the court shall provide the following written notice to the
3 juvenile:

4 This is your first felony offense. If you commit
5 another felony offense and you are fourteen years of age or
6 older, any of the following could happen to you:

7 1. You could be tried as an adult in adult criminal
8 court.

9 2. You could be committed to the department of juvenile
10 corrections.

11 3. You could be placed on juvenile intensive probation,
12 which could include incarceration in a juvenile detention
13 center.

14 D. If a juvenile is fourteen years of age or older and is
15 adjudicated as a repeat felony juvenile offender, unless the court
16 determines based on the severity of the offense and a risk assessment that
17 juvenile intensive probation services are not required, the juvenile court
18 shall place the juvenile on juvenile intensive probation, which may
19 include incarceration in a juvenile detention center, or may commit the
20 juvenile to the department of juvenile corrections pursuant to subsection
21 A, paragraph 1, subdivision (e) of this section.

22 E. If the juvenile is adjudicated as a repeat felony juvenile
23 offender, the court shall provide the following written notice to the
24 juvenile:

25 You are now a repeat felony offender. This means:

26 1. You will be tried as an adult in adult criminal
27 court if you commit another felony offense and you are fifteen
28 years of age or older.

29 2. You could be tried as an adult in adult criminal
30 court if you commit another felony offense when you are at
31 least fourteen years of age.

32 3. You could be incarcerated in the state department of
33 corrections if you are convicted as an adult in adult criminal
34 court.

35 F. The failure or inability of the court to provide the notices
36 required under subsections C and E of this section does not preclude the
37 use of the prior adjudications for any purpose otherwise allowed.

38 G. After considering the length of stay guidelines developed
39 pursuant to section 41-2816, subsection C, the court may set forth in the
40 order of commitment the minimum period during which the juvenile shall
41 remain in secure care while in the custody of the department of juvenile
42 corrections. When the court awards a juvenile to the department of
43 juvenile corrections or an institution or agency, it shall transmit with
44 the order of commitment copies of a diagnostic psychological evaluation
45 and educational assessment if one has been administered, copies of the
46 case report, all other psychological and medical reports, restitution
47 orders, any request for postadjudication notice that has been submitted by

1 a victim and any other documents or records pertaining to the case
2 requested by the department of juvenile corrections or an institution or
3 agency. The department shall not release a juvenile from secure care
4 before the juvenile completes the length of stay determined by the court
5 in the commitment order unless the county attorney in the county from
6 which the juvenile was committed requests the committing court to reduce
7 the length of stay. The department may temporarily escort the juvenile
8 from secure care pursuant to section 41-2804, may release the juvenile
9 from secure care without a further court order after the juvenile
10 completes the length of stay determined by the court or may retain the
11 juvenile in secure care for any period subsequent to the completion of the
12 length of stay in accordance with the law.

13 H. Written notice of the release of any juvenile pursuant to
14 subsection G of this section shall be made to any victim requesting
15 notice, the juvenile court that committed the juvenile and the county
16 attorney of the county from which the juvenile was committed.

17 I. Notwithstanding any law to the contrary, if a person is under
18 the supervision of the court as an adjudicated delinquent juvenile at the
19 time the person reaches eighteen years of age, treatment services may be
20 provided until the person reaches twenty-one years of age if the court,
21 the person and the state agree to the provision of the treatment and a
22 motion to transfer the person pursuant to section ~~[8-327]~~ [13-501] has not
23 been filed or has been withdrawn. The court may terminate the provision
24 of treatment services after the person reaches eighteen years of age if
25 the court determines that any of the following applies:

- 26 1. The person is not progressing toward treatment goals.
- 27 2. The person terminates treatment.
- 28 3. The person commits a new offense after reaching eighteen years
29 of age.
- 30 4. Continued treatment is not required or is not in the best
31 interests of the state or the person.

32 J. On the request of a victim of an act that may have involved
33 significant exposure as defined in section 13-1415 or that if committed by
34 an adult would be a sexual offense, the prosecuting attorney shall
35 petition the adjudicating court to require that the juvenile be tested for
36 the presence of the human immunodeficiency virus. If the victim is a
37 minor the prosecuting attorney shall file this petition at the request of
38 the victim's parent or guardian. If the act committed against a victim is
39 an act that if committed by an adult would be a sexual offense or the
40 court determines that sufficient evidence exists to indicate that
41 significant exposure occurred, it shall order the department of juvenile
42 corrections or the department of health services to test the juvenile
43 pursuant to section 13-1415. Notwithstanding any law to the contrary, the
44 department of juvenile corrections and the department of health services
45 shall release the test results only to the victim, the delinquent
46 juvenile, the delinquent juvenile's parent or guardian and a minor

1 victim's parent or guardian and shall counsel them regarding the meaning
2 and health implications of the results.

3 K. If a juvenile has been adjudicated delinquent for an offense
4 that if committed by an adult would be an offense listed in section
5 41-1750, subsection C, the court shall provide the department of public
6 safety Arizona automated fingerprint identification system established in
7 section 41-2411 with the juvenile's ten-print fingerprints, personal
8 identification data and other pertinent information. If a juvenile has
9 been committed to the department of juvenile corrections the department
10 shall provide the fingerprints and information required by this subsection
11 to the Arizona automated fingerprint identification system. If the
12 juvenile's fingerprints and information have been previously submitted to
13 the Arizona automated fingerprint identification system[,] the information
14 is not required to be resubmitted.

15 L. Access to fingerprint records submitted pursuant to subsection K
16 of this section shall be limited to the administration of criminal justice
17 as defined in section 41-1750. Dissemination of fingerprint information
18 shall be limited to the name of the juvenile, juvenile case number, date
19 of adjudication and court of adjudication.

20 M. If a juvenile is adjudicated delinquent for an offense that if
21 committed by an adult would be a misdemeanor, the court may prohibit the
22 juvenile from carrying or possessing a firearm while the juvenile is under
23 the jurisdiction of the department of juvenile corrections or the juvenile
24 court.

25 N. If a juvenile is adjudicated delinquent for a violation of
26 section 13-1602, subsection A, paragraph 5, the court shall order the
27 juvenile to pay a fine of at least \$300 but not more than \$1,000. Any
28 restitution ordered shall be paid in accordance with section 13-809,
29 subsection A. The court may order the juvenile to perform community
30 restitution in lieu of the payment for all or part of the fine if it is in
31 the best interests of the juvenile. The court shall credit community
32 restitution performed at a rate that is equal to the minimum wage
33 prescribed by section 23-363, subsections A and B, rounded up to the
34 nearest dollar. If the juvenile is convicted of a second or subsequent
35 violation of section 13-1602, subsection A, paragraph 5 and is ordered to
36 perform community restitution, the court may order the parent or guardian
37 of the juvenile to assist the juvenile in the performance of the community
38 restitution if both of the following apply:

39 1. The parent or guardian had knowledge that the juvenile intended
40 to engage in or was engaging in the conduct that gave rise to the
41 violation.

42 2. The parent or guardian knowingly provided the juvenile with the
43 means to engage in the conduct that gave rise to the violation.

44 O. If a juvenile is adjudicated delinquent for an offense involving
45 the purchase, possession or consumption of spirituous liquor or a
46 violation of title 13, chapter 34 and is placed on juvenile probation, the

1 court may order the juvenile to submit to random drug and alcohol testing
2 at least two times per week as a condition of probation.

3 P. If jurisdiction of the juvenile court is retained pursuant to
4 section 8-202, subsection H, the court shall order continued probation
5 supervision and treatment services until a child who has been adjudicated
6 a delinquent juvenile reaches nineteen years of age or until otherwise
7 terminated by the court. The court may terminate continued probation
8 supervision or treatment services before the child's nineteenth birthday
9 if the court determines that continued probation supervision or treatment
10 is not required or is not in the best interests of the juvenile or the
11 state or the juvenile commits a criminal offense after reaching eighteen
12 years of age.

13 Q. For the purposes of this section:

14 1. "First time felony juvenile offender" means a juvenile who is
15 adjudicated delinquent for an offense that would be a felony offense if
16 committed by an adult.

17 2. "Repeat felony juvenile offender" means a juvenile to whom both
18 of the following apply:

19 (a) Is adjudicated delinquent for an offense that would be a felony
20 offense if committed by an adult.

21 (b) Previously has been adjudicated a first time felony juvenile
22 offender.

23 3. "Sexual offense" means oral sexual contact, sexual contact or
24 sexual intercourse as defined in section 13-1401.>>

25 Sec. 6. Section 13-501, Arizona Revised Statutes, is amended to
26 read:

27 13-501. Persons under eighteen years of age; felony charging;
28 definitions

29 A. The county attorney shall bring a criminal prosecution against a
30 juvenile in the same manner as an adult if the juvenile is fifteen,
31 sixteen or seventeen years of age at the time the alleged offense is
32 committed and the juvenile is accused of any of the following offenses:

33 1. First degree murder in violation of section 13-1105.

34 2. Second degree murder in violation of section 13-1104.

35 3. Forcible sexual assault in violation of section 13-1406.

36 4. Armed robbery in violation of section 13-1904.

37 5. Any other violent felony offense.

38 6. Any felony offense committed by a chronic felony offender.

39 7. Any offense that is properly joined to an offense listed in this
40 subsection.

41 B. Except as provided in subsection A of this section, the county
42 attorney may bring a criminal prosecution against a juvenile [WHO IS
43 CHARGED WITH A FELONY OFFENSE] in the same manner as an adult [if the
44 juvenile is at least fourteen years of age at the time the alleged offense
45 is committed and the juvenile is accused of any of the following offenses]
46 [ONLY AFTER A HEARING IS HELD IN JUVENILE COURT IN WHICH THE COURT FINDS
47 PROBABLE CAUSE EXISTS TO BELIEVE THE OFFENSE WAS COMMITTED BY THE

1 JUVENILE, AND THE COURT DETERMINES THAT PUBLIC SAFETY AND THE INTERESTS OF
2 JUSTICE REQUIRE ADULT PROSECUTION. THE STATE HAS THE BURDEN OF PROVING BY
3 CLEAR AND CONVINCING EVIDENCE THAT ADULT PROSECUTION IS NECESSARY. IN
4 MAKING THIS DETERMINATION, THE COURT SHALL CONSIDER THE FOLLOWING
5 FACTORS]:

6 [1. A class 1 felony.

7 2. A class 2 felony.

8 3. A class 3 felony in violation of any offense in chapters 10
9 through 17 or chapter 19 or 23 of this title.

10 4. A class 3, 4, 5 or 6 felony involving a dangerous offense.

11 5. Any felony offense committed by a chronic felony offender.

12 6. Any offense that is properly joined to an offense listed in this
13 subsection.]

14 [1. THE SERIOUSNESS AND CIRCUMSTANCES OF THE OFFENSE.

15 2. WHETHER THE OFFENSE INVOLVED THE USE OR THREATENED USE OF A
16 DEADLY WEAPON.

17 3. THE JUVENILE'S PRIOR DELINQUENCY HISTORY.

18 4. THE JUVENILE'S AGE, MATURITY AND MENTAL, EMOTIONAL AND
19 PSYCHOLOGICAL CONDITION.

20 5. WHETHER THE JUVENILE HAS PREVIOUSLY PARTICIPATED IN
21 REHABILITATION PROGRAMS AND THE RESULTS OF THAT PARTICIPATION.

22 6. WHETHER THE JUVENILE HAS PREVIOUSLY BEEN COMMITTED TO THE
23 DEPARTMENT OF JUVENILE CORRECTIONS.

24 7. THE VIEWS OF THE VICTIM OF THE OFFENSE.

25 8. WHETHER THE JUVENILE COMMITTED THE OFFENSE WHILE PARTICIPATING
26 IN, ASSISTING, PROMOTING OR FURTHERING THE INTERESTS OF A CRIMINAL STREET
27 GANG, A CRIMINAL SYNDICATE OR A RACKETEERING ENTERPRISE.

28 9. WHETHER THE DEGREE OF THE JUVENILE'S PARTICIPATION IN THE
29 OFFENSE WAS RELATIVELY MINOR BUT NOT SO MINOR AS TO CONSTITUTE A DEFENSE
30 TO PROSECUTION.

31 10. THE LIKELIHOOD OF THE JUVENILE'S REASONABLE REHABILITATION
32 THROUGH AVAILABLE JUVENILE COURT SERVICES.]

33 C. A criminal prosecution shall be brought against a juvenile in
34 the same manner as an adult if the juvenile has been accused of a criminal
35 offense and has a historical prior felony conviction.

36 D. At the time the county attorney files a complaint or indictment
37 the county attorney shall file a [WRITTEN STATEMENT OF SPECIFIC FACTS
38 SUPPORTING ADULT PROSECUTION AND A] notice stating that the juvenile is a
39 chronic felony offender. Subject to subsection E of this section, the
40 notice shall establish and confer jurisdiction over the juvenile as a
41 chronic felony offender.

42 E. On motion of the juvenile the court shall hold a hearing after
43 arraignment and before trial to determine if a juvenile is a chronic
44 felony offender. [THE COURT SHALL ISSUE WRITTEN FINDINGS SUPPORTING ITS
45 DETERMINATION.] At the hearing the state shall prove by a preponderance
46 of the evidence that the juvenile is a chronic felony offender. If the
47 court does not find that the juvenile is a chronic felony offender, the

1 court shall transfer the juvenile to the juvenile court pursuant to
2 section 8-302. If the court finds that the juvenile is a chronic felony
3 offender or if the juvenile does not file a motion to determine if the
4 juvenile is a chronic felony offender, the criminal prosecution shall
5 continue.

6 F. Except as provided in section 13-921, a person who is charged
7 pursuant to this section shall be sentenced in the criminal court in the
8 same manner as an adult for any offense for which the person is convicted.

9 G. Unless otherwise provided by law, ~~nothing in~~ this section ~~shall~~
10 ~~be construed as to~~ DOES NOT confer jurisdiction in the juvenile court over
11 any person who is eighteen years of age or older.

12 [H. THIS SECTION DOES NOT ELIMINATE JUDICIAL DISCRETION OR DUE
13 PROCESS PROTECTIONS THAT ARE GUARANTEED BY THE ARIZONA CONSTITUTION.]

14 [H.] [I.] For the purposes of this section:

15 1. "Accused" means a juvenile against whom a complaint, information
16 or indictment is filed.

17 2. "Chronic felony offender" means[;

18 (a)] A juvenile who has had two prior and separate adjudications and
19 dispositions THAT WERE CLASSIFIED AS [ANY FELONY UNDER CHAPTER 14 OF THIS
20 TITLE OR] A CLASS 1, 2 OR 3 FELONY for conduct that would constitute a
21 historical prior felony conviction if the juvenile had been tried as an
22 adult.

23 [(b) A JUVENILE WHO HAS BEEN COMMITTED TO THE DEPARTMENT OF
24 JUVENILE CORRECTIONS AND WHO HAS HAD TWO PRIOR AND SEPARATE FELONY
25 ADJUDICATIONS AND DISPOSITIONS FOR CONDUCT THAT WOULD CONSTITUTE A
26 HISTORICAL PRIOR FELONY CONVICTION IF THE JUVENILE HAD BEEN TRIED AS AN
27 ADULT.]

28 3. "Forcible sexual assault" means sexual assault pursuant to
29 section 13-1406 that is committed without consent as defined in section
30 13-1401, SUBSECTION A, paragraph 7, subdivision (a).

31 4. "Other violent felony offense" means:

32 (a) Aggravated assault pursuant to section 13-1204, subsection A,
33 paragraph 1.

34 (b) Aggravated assault pursuant to section 13-1204, subsection A,
35 paragraph 2 involving the use of a deadly weapon.

36 (c) Drive by shooting pursuant to section 13-1209.

37 (d) Discharging a firearm at a structure pursuant to section
38 13-1211.

39 <<Sec. 7. Section 13-610, Arizona Revised Statutes, is amended to
40 read:

41 13-610. DNA testing

42 A. Within thirty days after a person is sentenced to the state
43 department of corrections or a person who is accepted under the interstate
44 compact for the supervision of parolees and probationers arrives in this
45 state, the state department of corrections shall secure a sufficient
46 sample of blood or other bodily substances for deoxyribonucleic acid
47 testing and extraction from the person if the person was convicted of an

1 offense listed in this section and was sentenced to a term of imprisonment
2 or was convicted of any offense that was committed in another jurisdiction
3 that if committed in this state would be a violation of any offense listed
4 in this section and the person is under the supervision of the state
5 department of corrections. The state department of corrections shall
6 transmit the sample to the department of public safety.

7 B. Within thirty days after a person is placed on probation and
8 sentenced to a term of incarceration in a county jail detention facility
9 or is detained in a county juvenile detention facility, the county
10 detention facility shall secure a sufficient sample of blood or other
11 bodily substances for deoxyribonucleic acid testing and extraction from
12 the person if the person was convicted of or adjudicated delinquent for an
13 offense listed in this section. The county detention facility shall
14 transmit the sample to the department of public safety.

15 C. Within thirty days after a person is convicted and placed on
16 probation without a term of incarceration or adjudicated delinquent and
17 placed on probation, the county probation department shall secure a
18 sufficient sample of blood or other bodily substances for deoxyribonucleic
19 acid testing and extraction from the person if the person was convicted of
20 or adjudicated delinquent for an offense listed in this section. The
21 county probation department shall transmit the sample to the department of
22 public safety.

23 D. Within thirty days after the arrival of a person who is accepted
24 under the interstate compact for the supervision of parolees and
25 probationers and who is under the supervision of a county probation
26 department, the county probation department shall secure a sufficient
27 sample of blood or other bodily substances for deoxyribonucleic acid
28 testing and extraction from the person if the person was convicted of an
29 offense that was committed in another jurisdiction that if committed in
30 this state would be a violation of any offense listed in this section and
31 was sentenced to a term of probation. The county probation department
32 shall transmit the sample to the department of public safety.

33 E. Within thirty days after a juvenile is committed to the
34 department of juvenile corrections, the department of juvenile corrections
35 shall secure a sufficient sample of blood or other bodily substances for
36 deoxyribonucleic acid testing and extraction from the youth if the youth
37 was adjudicated delinquent for an offense listed in this section and was
38 committed to a secure care facility. The department of juvenile
39 corrections shall transmit the sample to the department of public safety.

40 F. Within thirty days after the arrival in this state of a juvenile
41 who is accepted by the department of juvenile corrections pursuant to the
42 interstate compact on juveniles and who was adjudicated for an offense
43 that was committed in another jurisdiction that if committed in this state
44 would be a violation of any offense listed in this section, the compact
45 administrator shall request that the sending state impose as a condition
46 of supervision that the juvenile submit a sufficient sample of blood or
47 other bodily substances for deoxyribonucleic acid testing. If the sending

1 state does not impose that condition, the department of juvenile
2 corrections shall request a sufficient sample of blood or other bodily
3 substances for deoxyribonucleic acid testing within thirty days after the
4 juvenile's arrival in this state. The department of juvenile corrections
5 shall transmit the sample to the department of public safety.

6 G. Notwithstanding subsections A through F, K, L and O of this
7 section, the agency that is responsible for securing a sample pursuant to
8 this section shall not secure the sample if the scientific criminal
9 analysis section of the department of public safety has previously
10 received and is maintaining a sample sufficient for deoxyribonucleic acid
11 testing.

12 H. The department of public safety shall do all of the following:

13 1. Conduct or oversee through mutual agreement an analysis of the
14 samples that it receives pursuant to subsections K, L and O of this
15 section.

16 2. Make and maintain a report of the results of each
17 deoxyribonucleic acid analysis.

18 3. Maintain samples of blood and other bodily substances for at
19 least thirty-five years.

20 I. Any sample and the result of any test that is obtained pursuant
21 to this section or section 8-238 may be used only as follows:

22 1. For law enforcement identification purposes.

23 2. In a proceeding in a criminal prosecution or juvenile
24 adjudication.

25 3. In a proceeding under title 36, chapter 37.

26 J. If the conviction or adjudication of a person who is subject to
27 this section or section 8-238 is overturned on appeal or postconviction
28 relief and a final mandate has been issued, on petition of the person to
29 the superior court in the county in which the conviction occurred, the
30 court shall order that the person's deoxyribonucleic acid profile
31 resulting from that conviction or adjudication be expunged from the
32 Arizona deoxyribonucleic acid identification system established by section
33 41-2418 unless the person has been convicted or adjudicated delinquent of
34 another offense that would require the person to submit to
35 deoxyribonucleic acid testing pursuant to this section.

36 K. If a person is arrested for any offense listed in subsection O,
37 paragraph 3 of this section and is transferred by the arresting authority
38 to a state, county or local law enforcement agency or jail, the arresting
39 authority or its designee shall secure a sufficient sample of buccal cells
40 or other bodily substances for deoxyribonucleic acid testing and
41 extraction from the person for the purpose of determining identification
42 characteristics. The arresting authority or its designee shall transmit
43 the sample to the department of public safety.

44 L. A person who is charged with a felony or misdemeanor offense
45 listed in subsection O, paragraph 3 of this section and who is summoned to
46 appear in court for an initial appearance shall report within five days of
47 release on bail or on the person's own recognizance to the law enforcement

1 agency that investigated the person or its designee and submit a
2 sufficient sample of buccal cells or other bodily substances for
3 deoxyribonucleic acid testing and extraction. The arresting authority or
4 its designee shall transmit the sample to the department of public safety.

5 M. A person who is subject to subsection K or L of this section or
6 section 8-238 may petition the superior court in the county in which the
7 arrest occurred or the criminal charge was filed to order that the
8 person's deoxyribonucleic acid profile and sample be expunged from the
9 Arizona deoxyribonucleic acid identification system, unless the person has
10 been arrested, charged with or convicted of or adjudicated delinquent ~~[off]~~
11 ~~[FOR]~~ another offense that would require the person to submit to
12 deoxyribonucleic acid testing pursuant to this section, if any of the
13 following applies:

14 1. The criminal charges are not filed within the applicable period
15 prescribed by section 13-107.

16 2. The criminal charges are dismissed.

17 3. The person is acquitted at trial.

18 N. If any sample that is submitted to the department of public
19 safety under this section or section 8-238 is found to be unacceptable for
20 analysis and use or cannot be used by the department, the department shall
21 require that another sample of blood or other bodily substances be secured
22 pursuant to this section.

23 O. This section applies to persons who are:

24 1. Convicted of any felony offense.

25 2. Adjudicated delinquent for any of the following offenses:

26 (a) A violation or an attempt to violate any offense in chapter 11
27 of this title, any felony offense in chapter 14 or 35.1 of this title or
28 section 13-1507, 13-1508 or 13-3608.

29 (b) Any offense for which a person is required to register pursuant
30 to section 13-3821.

31 (c) A violation of any felony offense in chapter 34 of this title
32 that may be prosecuted pursuant to section 13-501, subsection B~~[;~~
33 ~~paragraph 2]~~.

34 (d) A violation of any ~~[felony]~~ offense that is listed in section
35 13-501~~[, SUBSECTION A OR ANY FELONY OFFENSE THAT MAY BE PROSECUTED~~
36 ~~PURSUANT TO SECTION 13-501, SUBSECTION B]~~.

37 3. Arrested for a violation of any offense in chapter 11 of this
38 title, a violation of section 13-1402, 13-1403, 13-1404, 13-1405, 13-1406,
39 13-1410, 13-1411, 13-1417, 13-1507, 13-1508, 13-3208, 13-3214, 13-3555 or
40 13-3608 or a violation of any serious offense as defined in section 13-706
41 that is a dangerous offense.>>

42 <<Sec. 8. Section 13-1206, Arizona Revised Statutes, is amended to
43 read:

44 13-1206. Dangerous or deadly assault by prisoner or juvenile;
45 classification

46 A person, while in the custody of the state department of
47 corrections, the department of juvenile corrections, a law enforcement

1 agency or a county or city jail, who commits an assault involving the
2 discharge, use or threatening exhibition of a deadly weapon or dangerous
3 instrument or who intentionally or knowingly inflicts serious physical
4 injury ~~[upon]~~ [ON] another person is guilty of a class 2 felony. If the
5 person is an adult or is a juvenile convicted as an adult pursuant to
6 section ~~[8-327 or]~~ 13-501 or the rules of procedure for the juvenile
7 court, the person ~~[shall]~~ [IS] not ~~[be]~~ eligible for suspension of
8 sentence, probation, pardon or release from confinement on any basis until
9 the sentence imposed by the court has been served or commuted. A sentence
10 imposed pursuant to this section shall be consecutive to any other
11 sentence presently being served by the convicted person.>>

12 <<Sec. 9. Section 13-3967, Arizona Revised Statutes, is amended to
13 read:

14 13-3967. Release on bailable offenses before trial;
15 definition

16 A. At his appearance before a judicial officer, any person who is
17 charged with a public offense that is bailable as a matter of right shall
18 be ordered released pending trial on his own recognizance or on the
19 execution of bail in an amount specified by the judicial officer.

20 B. In determining the method of release or the amount of bail, the
21 judicial officer, on the basis of available information, shall take into
22 account all of the following:

- 23 1. The views of the victim.
- 24 2. The nature and circumstances of the offense charged.
- 25 3. Whether the accused has a prior arrest or conviction for a
26 serious offense or violent or aggravated felony as defined in section
27 13-706 or an offense in another state that would be a serious offense or
28 violent or aggravated felony as defined in section 13-706 if committed in
29 this state.
- 30 4. Evidence that the accused poses a danger to others in the
31 community.
- 32 5. The results of a risk or lethality assessment in a domestic
33 violence charge that is presented to the court.
- 34 6. The weight of evidence against the accused.
- 35 7. The accused's family ties, employment, financial resources,
36 character and mental condition.
- 37 8. The results of any drug test submitted to the court.
- 38 9. Whether the accused is using any substance if its possession or
39 use is illegal pursuant to chapter 34 of this title.
- 40 10. Whether the accused violated section 13-3407, subsection A,
41 paragraph 2, 3, 4 or 7 involving methamphetamine or section 13-3407.01.
- 42 11. The length of residence in the community.
- 43 12. The accused's record of arrests and convictions.
- 44 13. The accused's record of appearance at court proceedings or of
45 flight to avoid prosecution or failure to appear at court proceedings.
- 46 14. Whether the accused has entered or remained in the United
47 States illegally.

1 15. Whether the accused's residence is in this state, in another
2 state or outside the United States.

3 C. If a judicial officer orders the release of a defendant who is
4 charged with a felony either on his own recognizance or on bail, the
5 judicial officer shall condition the defendant's release on the
6 defendant's good behavior while so released. On a showing of probable
7 cause that the defendant committed any offense during the period of
8 release, a judicial officer may revoke the defendant's release pursuant to
9 section 13-3968.

10 D. After providing notice to the victim pursuant to section
11 13-4406, a judicial officer may impose any of the following conditions on
12 a person who is released on his own recognizance or on bail:

13 1. Place the person in the custody of a designated person or
14 organization agreeing to supervise him.

15 2. Place restrictions on the person's travel, associates or place
16 of abode during the period of release.

17 3. Require the deposit with the clerk of the court of cash or other
18 security, such deposit to be returned on the performance of the conditions
19 of release.

20 4. Prohibit the person from possessing any deadly weapon or
21 engaging in certain described activities or indulging in intoxicating
22 liquors or certain drugs.

23 5. Require the person to report regularly to and remain under the
24 supervision of an officer of the court.

25 6. Impose any other conditions deemed reasonably necessary to
26 assure appearance as required including a condition requiring that the
27 person return to custody after specified hours.

28 E. In addition to any of the conditions a judicial officer may
29 impose pursuant to subsection D of this section, the judicial officer
30 shall impose both of the following conditions on a person who is charged
31 with a felony violation of chapter 14 or 35.1 of this title or section
32 13-3212 and who is released on his own recognizance or on bail:

33 1. Electronic monitoring where available.

34 2. A condition prohibiting the person from having any contact with
35 the victim.

36 F. The judicial officer who authorizes the release of the person
37 charged on his own recognizance or on bail shall do all of the following:

38 1. Issue an appropriate order containing statements of the
39 conditions imposed.

40 2. Inform the person of the penalties that apply to any violation
41 of the conditions of release.

42 3. Advise the person that a warrant for his arrest may be issued
43 immediately on any violation of the conditions of release, including the
44 failure to submit to deoxyribonucleic acid testing ordered pursuant to
45 paragraph 4 of this subsection.

46 4. If the person is charged with a felony or misdemeanor offense
47 listed in section 13-610, subsection 0, paragraph 3 and is summoned to

1 appear, order the person to report within five days to the law enforcement
2 agency that arrested the person or to the agency's designee and submit a
3 sufficient sample of buccal cells or other bodily substances for
4 deoxyribonucleic acid testing and extraction. If a person does not comply
5 with an order issued pursuant to this paragraph, the court shall revoke
6 the person's release.

7 G. At any time after providing notice to the victim pursuant to
8 section 13-4406, the judicial officer who orders the release of a person
9 on any condition specified in this section or the court in which a
10 prosecution is pending may amend the order to employ additional or
11 different conditions of release, including either an increase or reduction
12 in the amount of bail. On application, the defendant shall be entitled to
13 have the conditions of release reviewed by the judicial officer who
14 imposed them or by the court in which the prosecution is pending.
15 Reasonable notice of the application shall be given to the county attorney
16 and the victim.

17 H. Any information that is stated or offered in connection with any
18 order pursuant to this section need not conform to the rules pertaining to
19 admissibility of evidence in a court of law.

20 I. This section does not prevent the disposition of any case or
21 class of cases by forfeiture of bail or collateral security if such
22 disposition is authorized by the court.

23 J. A judicial officer who orders the release of a juvenile who is
24 enrolled in a school and who has been transferred to the criminal division
25 of the superior court pursuant to section ~~[8-327]~~ [13-501] or who has been
26 charged as an adult pursuant to section 13-501 shall notify the
27 appropriate school on the release of the juvenile from custody.

28 K. For the purposes of this section and section 13-3968, "judicial
29 officer" means any person or court authorized pursuant to the constitution
30 or laws of this state to bail or otherwise release a person before trial
31 or sentencing or pending appeal.>>

32 <<Sec. 10. Section 36-520, Arizona Revised Statutes, is amended to
33 read:

34 36-520. Application for evaluation; definition

35 A. Any responsible individual may apply for a court-ordered
36 evaluation of a person who is alleged to be, as a result of a mental
37 disorder, a danger to self or to others or a person with a persistent or
38 acute disability or a grave disability and who is unwilling or unable to
39 undergo a voluntary evaluation. The application shall be made in the
40 prescribed form and manner as adopted by the director.

41 B. The application for evaluation shall include the following, if
42 known:

43 1. The name and address of the proposed patient for whom evaluation
44 is applied.

45 2. The age, date of birth, sex, race, marital status, occupation,
46 social security number, present location, dates and places of previous
47 hospitalizations, names and addresses of the guardian, agent under a

1 health care power of attorney or mental health care power of attorney,
2 spouse, next of kin and significant other persons and other data that the
3 director may require on the form to whatever extent that this data is
4 known and is applicable to the proposed patient.

5 3. The name, address and relationship of the person who is applying
6 for the evaluation.

7 4. A statement that the proposed patient is exhibiting behaviors
8 that may be consistent with a mental disorder and is believed to be, as a
9 result of a mental disorder, a danger to self or to others or a patient
10 with a persistent or acute disability or a grave disability and the facts
11 on which this statement is based.

12 5. A statement from the applicant of whether the applicant believes
13 that the proposed patient is or is not willing or able to undergo
14 voluntary evaluation and the facts on which this statement is based.

15 6. A statement of the proposed patient's relevant history of mental
16 health diagnosis, treatment recommended or provided and compliance with
17 the treatment recommended or provided.

18 7. A statement that the applicant believes the proposed patient is
19 in need of screening, evaluation, supervision, care and treatment and the
20 facts on which this statement is based.

21 8. Copies of all documents relating to guardianship or powers of
22 attorney that allow the guardian or agent to consent to inpatient
23 psychiatric treatment, which shall be attached to the application if
24 available at the time of the application.

25 9. A statement by the applicant of whether the applicant believes
26 that, without a period of inpatient observation, stabilization and
27 assessment or emergency inpatient psychiatric hospitalization, the
28 proposed patient is likely to cause or endure serious physical harm or
29 injury and the facts supporting that statement.

30 10. To the extent known, the names and contact information of
31 persons other than the applicant who have witnessed the behavior exhibited
32 by the proposed patient on which the application is based. The screening
33 agency may not deny or refuse to process an application because no other
34 witnesses have been identified.

35 C. The application shall be signed and notarized. For an
36 application made by a peace officer or a health care professional who is
37 licensed pursuant to title 32, chapter 13, 15, 17 or 19.1, a copy of the
38 application that contains the applicant's original signature is
39 acceptable, does not have to be notarized and may be submitted as the
40 written application.

41 D. The screening agency shall offer assistance to the applicant in
42 preparation of the application. On receipt of the application, the
43 screening agency shall immediately note on the front of the application
44 the time and date of receipt, shall log this information in a record of
45 applications received by the screening agency and shall act as prescribed
46 in section 36-521 within forty-eight hours after the filing of the
47 application, excluding weekends and holidays. If the application is not

1 acted on within forty-eight hours, excluding weekends and holidays, the
2 reasons for not acting promptly shall be reviewed by the director of the
3 screening agency or the director's designee and the reasons shall be
4 stated in the report required by section 36-521, subsection B.

5 E. If the applicant for the court-ordered evaluation presents the
6 person to be evaluated at the screening agency, the agency shall conduct a
7 prepetition screening examination. Except in the case of an emergency
8 evaluation, the person to be evaluated shall not be detained or forced to
9 undergo prepetition screening against the person's will.

10 F. In the course of conducting a prepetition screening, the
11 screening agency shall accept and consider information relevant to the
12 present behavior and past behavioral health history of the proposed
13 patient from persons who have a significant relationship with the proposed
14 patient, including family members and guardians.

15 G. If the applicant for the court-ordered evaluation does not
16 present the person to be evaluated at the screening agency, the agency
17 shall conduct the prepetition screening at the home of the person to be
18 evaluated or any other place the person to be evaluated is found. If
19 prepetition screening is not possible, the screening agency shall proceed
20 as prescribed in section 36-521, subsection B.

21 H. If a person is being treated by prayer or spiritual means alone
22 in accordance with the tenets and practices of a recognized church or
23 religious denomination by a duly accredited practitioner of that church or
24 denomination, the person may not be ordered evaluated, detained or
25 involuntarily treated unless the court has determined that the person is,
26 as a result of mental disorder, a danger to others or to self.

27 I. If the application is not acted on because it has been
28 determined that the proposed patient does not need an evaluation, the
29 medical director of the screening agency or the medical director's
30 designee shall make a written statement of the reasons why the proposed
31 patient does not need an evaluation and shall retain the application
32 together with the medical director's statement and any records or reports
33 concerning prepetition screening required pursuant to section 36-521.

34 J. If the screening agency determines that the application should
35 be denied or if the application is accepted but the screening agency
36 declines to file a petition for court-ordered evaluation, the screening
37 agency shall comply with the requirements of section 36-521, subsection C.
38 If the screening of the proposed patient took place in a facility operated
39 by the screening agency, the screening agency shall attempt to notify the
40 applicant that the screening agency intends to release the proposed
41 patient. The screening agency shall document the time and method of the
42 notification or an unsuccessful attempt to notify the applicant. If
43 requested by the applicant, the medical director of the screening agency
44 or the medical director's designee shall provide the reason for the denial
45 of the application or the decision not to file a petition for
46 court-ordered evaluation if either:

47 1. The disclosure is not opposed by the person who was screened.

1 2. The person who was screened is deemed to lack capacity to make
2 the decision to allow the disclosure and the disclosure is deemed to be in
3 the person's best interest.

4 K. For the purposes of this section, "person" includes a person
5 who:

6 1. Is under eighteen years of age.

7 2. Has been transferred to the criminal division of the superior
8 court pursuant to section ~~[8-327]~~ [13-501] or who has been charged with an
9 offense pursuant to section 13-501.

10 3. Is under the supervision of an adult probation department.>>

11 Enroll and engross to conform

12 Amend title to conform

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